



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

FEB 17 1994

DOT-E 11205
(FIRST REVISION)

EXPIRATION DATE: March 11, 1994

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Olin Corporation, Stamford, Connecticut
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the shipment of 38 DOT Specification 105A500W tank cars, containing a Division 2.3 material, meeting all DOT requirements except that the tank cars are overloaded. This exemption provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.314(c)
5. BASIS. This emergency exemption is based on Olin Corporation's applications of February 9, 10 and 17, 1994, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for the protection of life and property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/Division	Identification number	Packing Group
Chlorine	2.3	UN 1017	N/A

7. PACKAGING(S) and SAFETY CONTROL MEASURES:
 - a. PACKAGING - Packagings prescribed are DOT specification tank cars, list in Appendix A of this exemption.
 - b. TESTING - Upon arriving at an unloading facility, an accurate amount of product must be determined and that information must be supplied to the Federal Railroad Administration.

8. SPECIAL PROVISIONS.

a. Shipment of the tank cars is authorized from Conrail, Buffalo, New York, and Conrail, Niagara Falls, New York, to return to the original shipper, Niachlor Corporation, Niagara Falls, New York. Tank car (UTLX 900239), located in Allentown, Pennsylvania is authorized to destination in Baltimore, Maryland utilizing the shortest and most direct route via Consolidated Rail Corporation. Tank car (GATX 36606), located in Toronto, Canada is authorized from the USA/Canada international interchange point to destination in Niagara Falls, New York utilizing the most direct route via Canadian National and Consolidated Rail Corporation railroads.

b. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.10. MODAL REQUIREMENTS: The Federal Railroad Administration is to be notified if any unusual incident occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety Enforcement
Hazardous Materials Division, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.106 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

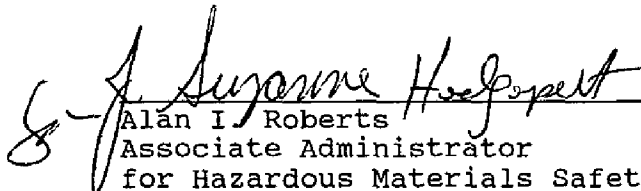
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12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

FEB 17 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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